

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
<http://www.courts.state.nh.us>

Court Name: _____
Case Name: _____
Case Number: _____ Charge ID: _____
(if known)

PETITION TO ANNUL RECORD:
Offenses Resolved Prior to 01/01/2019

In accordance with RSA 651:5, the applicant requests that the Court annul the record of arrest and charge, and if applicable, conviction and sentence in the following matter:

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name: Maria-Alejandra O'Shaughnessy-Whitfield		Date of Birth: 1968-12-31	
Address: 1188 Upper Notch Crossing Road, Apartment 14B			
City/Town NH	State NH	Zip Code 03801-2214	Telephone Number:
E-mail Address: (optional) maria.alejandra.oshaughnessy.whitfield@longmailexample.org			

CHARGE INFORMATION				
For the charge that you are seeking to annul, list the RSA (statute) violated, name of crime/offense, date of offense, date of conviction or other disposition, date all terms and conditions of the sentence were completed, and disposition (sentence) imposed by the Court:				
RSA/Statute:	Charge:	Charge Date:	Date of Conviction or Other Disposition:	Date Sentence Completed:
Description of Sentence or other Disposition:				

Case Name: _____

Case Number: _____

PETITION TO ANNUL RECORD

APPLICANT'S CERTIFICATION
(Select all checkbox that applies)

- ☐ The applicant was **not convicted** of the above crime/offense, and seeks only annulment of any record of arrest and/or charge.
- ☐ The applicant was **convicted** of the above crime/offense, and seeks annulment of any record of arrest, the offense/charge, conviction and sentence, and the applicant represents to the Court that:
- ☐ All the terms and conditions of the sentence listed above have been completed, including the payment of any fine, restitution or other cost, any period of good behavior, any probation period and any suspended sentence imposed by the Court.
- ☐ The time requirements for an annulment under RSA 651:5, III have been met for the crime for which the applicant has been convicted.
- ☐ Since completing the terms and conditions of the sentence imposed by the Court in these matters, the applicant has not thereafter been convicted of any other crime, except a motor vehicle offense classified as a violation, not including driving while intoxicated under RSA 265-A:2, I, RSA 265:82 or RSA 265-82-a.
- ☐ There are currently no charges pending against the applicant in any other Court, except:
- _____
- _____
- ☐ None of the charges sought to be annulled involve a violent crime, a felony crime of obstruction of justice, or an offense for which an extended term of imprisonment under RSA 651:6 was imposed.
- ☐ The charge sought to be annulled does not have an enhanced penalty for a second conviction.
- ☐ The time requirements for all offenses of which I have been convicted have been met.

After considering the investigation and report prepared by the Department of Corrections and any response filed by the State, the Court may make a decision on your Petition to Annul Record without a hearing. If you are requesting a hearing before a judge, please check the box. ☐

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge.

Date

Applicant's Signature

Name of Counsel

Counsel's Signature

Address

Address

Case Name: _____

Case Number: _____

PETITION TO ANNUL RECORD

FOR COURT USE ONLY:

ON THE PETITION TO ANNUL RECORD OF ARREST OR CONVICTION AND SENTENCE

The Court having found that notice of the forgoing petition was given in accordance with law, and having reviewed the investigative report of the Department of Corrections made in accordance with statute, finds that annulment of the applicant's record will assist in the applicant's rehabilitation and will be consistent with the public welfare and the requirements of law,

IT IS THEREFORE ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT

☐ That the record of arrest is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ That the record of the charge and disposition of dismissal, acquittal or nolle prosequi in the above referenced matter, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ That the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

CC: ☐ Prosecutor

☐ Defense Attorney

☐ DMV

☐ _____ Police Department

☐ Attorney General

☐ Sentence Review

☐ Defendant

☐ Dept. of Safety – Criminal Records

☐ Dept. of Corrections

☐ Other _____

☐ _____ District Division #

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Court Name: _____
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(if known)

MOTION FOR WAIVER OF FILING FEE

I, Maria-Alejandra O'Shaughnessy-Whitfield, hereby request that the Court waive the filing fee in this case as I do not have the financial ability to pay these fees at this time.

I have completed a Statement of Assets and Liabilities which is being filed with this motion.

In support of this motion, it is stated as follows:

Wherefore, it is respectfully requested that this Court waive the filing fee in this case.

_____ Name of Filer		<u>Enter /s/ before name</u> _____ Signature of Filer	_____ Date
_____ Law Firm, if applicable	_____ Bar ID # of attorney	_____ Telephone	
_____ Address		_____ E-mail	
_____ City	_____ State	_____ Zip code	

Case Name: _____

Case Number: _____

MOTION FOR WAIVER OF FILING FEES

FOR COURT USE ONLY

☐ Motion Granted.

☐ Motion Denied

☐ Motion granted, in part. Filing fee reduced, party to pay \$ _____

Date

THE STATE OF NEW HAMPSHIRE

JUDICIAL BRANCH

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Court Name: _____

Case Name: _____

Case Number: _____
(if known)STATEMENT OF ASSETS AND LIABILITIES
FOR INDIVIDUALS AND SOLE PROPRIETORS1. Name: Maria-Alejandra O'Shaughnessy-Whitfield DOB: 1968-12-312. Residence Address: 1188 Upper Notch Crossing Road, Apartment 14B

3. Mailing Address (if different): _____

4. Marital Status: ☐ Single ☐ Married ☐ Separated ☐ Widowed5. List the names, ages, relationships of dependents you support: _____

_____6. If you are presently employed, state where and for how long: _____ ☐ Full-Time ☐ Part-Time

7. If unemployed, state last date of employment: _____

8. When do you anticipate new employment? _____

9. If your spouse is presently employed, state where and for how long? _____ ☐ Full-Time ☐ Part-Time

10. If spouse unemployed, state last date of employment: _____

11. List other employed household members and their weekly income: _____

12. Please state weekly take-home amount	Yours	Spouse's
Salary/Wages	\$ _____	\$ _____
Child Support	\$ _____	\$ _____
Alimony	\$ _____	\$ _____
Trust Benefits	\$ _____	\$ _____
Investment Income	\$ _____	\$ _____
Other	\$ _____	\$ _____
*Social Security	\$ _____	\$ _____
*Welfare Benefits	\$ _____	\$ _____
*Veteran's Benefits	\$ _____	\$ _____
*Pension	\$ _____	\$ _____
**Unemployment Compensation	\$ _____	\$ _____
**Worker's Compensation	\$ _____	\$ _____
Total	\$ _____	\$ _____

13. What money is presently available to you?

Cash on hand	\$ _____
Checking account	\$ _____
Savings account	\$ _____
Stocks/Bonds/IRA/Pension	\$ _____
Total	\$ _____

Case Name: _____

Case Number: _____

STATEMENT OF ASSETS AND LIABILITIES FOR INDIVIDUALS AND SOLE PROPRIETORS

14. Please state your **monthly** household expenses:

Rent/Mortgage	\$ _____	Cell Phone	\$ _____
Property Taxes	\$ _____	Clothing	\$ _____
Heat	\$ _____	Transportation	\$ _____
Food	\$ _____	(including gas, maintenance, insurance, repairs)	
Utilities	\$ _____	Other (specify)	
Medical/Dental	\$ _____	_____	\$ _____
Insurance	\$ _____	_____	\$ _____
Total	\$ _____		

15. List any real estate you own, its market value and the amount you owe:

16. List any vehicles you own (car, truck, boat, motorcycle, snowmobile, RV), their market value and the amount you owe:

17. List income tax paid last year: \$ _____

18. List income tax refund received last year: \$ _____

19. Other than monthly household expenses, list any bills you owe, amount owed, to whom, and monthly payment:

20. List which of your bills are court-ordered payments (i.e. alimony, judgment in a law suit, etc.):

21. Other than those previously mentioned, list anyone to whom you owe money, amount and when it is due:

22. If anyone owes you money, state name, address, amount due, and when due:

23. List any property you have transferred within the last three years, to whom and for what price:

24. List any other assets or expenses not previously mentioned:

* Exempt income – The Court may not consider this income. If this represents the sole source of income, the court may not issue a payment order.

** Potentially/partially exempt income – The Court may be unable to consider this income. Based upon the facts of the case, the Court may or may not issue a payment order.

Case Name: _____

Case Number: _____

STATEMENT OF ASSETS AND LIABILITIES FOR INDIVIDUALS AND SOLE PROPRIETORS

☐ I state that on this date I am sending a copy of this document as required by the rules of the Circuit Court. I am electronically sending this document through the court's electronic filing system to all attorneys and to all other parties who have entered electronic service contacts (email addresses) in this case. I am mailing or hand-delivering copies to all other interested parties.

_____/s/_____
Name of Filer Signature of Filer Date

Law Firm, if applicable Bar ID # of attorney Telephone

Address E-mail

City State Zip code

Notice of Protected (Exempt) Sources of Income

PERIODIC PAYMENTS CANNOT BE ORDERED FROM THE FOLLOWING SOURCES OF INCOME (subject to some exceptions):

- Social Security Old-Age, Survivors & Disability Insurance Benefits (42, U.S.C. § 407)
- Supplementary Security Income (SSI) for the Aged, Blind and Disabled (42 U.S.C. §407 and §1383(d)(1))
- Unemployment Compensation Benefits (RSA 282-A:159) (Exemption from payment orders except debts incurred for basic needs expenses for you or your family during the period of unemployment.
- Public Assistance Payments to the Blind, Aged or Disabled Persons and Dependent Children (ANB, OAA, APTD and TANF/FANF) (RSA 167:25)
- Veterans Benefits including: Retirement Benefits (10 U.S.C. §1440), Survivors' Benefits (10 U.S.C. §1450), Other Veterans Benefits (38 U.S.C. § 5301(a)), Medal of Honor Veterans Benefits (38 U.S.C. § 1562)
- Workers Compensation Benefits (RSA 281-A:52) (Exemption from payment orders except debts for medical and related care for the compensated injury and claims for legal fees approved by the Superior Court for prosecuting the workers compensation claim.
- Retirement funds including Individual Retirement Accounts, Stock Bonus, Pension, Profit-Sharing, Annuity or Similar Qualified Plan (RSA 511:2(XIX)). Exempt from periodic payments up to \$362.50 per week. If income and expenses are shared with another person with whom you live and the other person also receives income from such a retirement plan or arrangement, the exemption is up to \$725.00 per week.
- Civil Service Retirement Benefits (5 U.S.C. § 8346(a))
- Armed Forces Retirement Pay (10 U.S.C. § 1440)
- Railroad Retirement Act Annuities and Pensions (45 U.S.C. § 231m)
- Fireman's Retirement Pay (RSA 102:23)
- Fireman's Relief Payments (RSA 402:69)
- Foreign Services Retirement and Disability Payments (22 U.S.C. § 4060(c))
- Injury or Death Compensation Payments from War Risk Hazards (42 U.S.C. § 1717) (With exception of monies paid as reimbursement for funeral expenses or as reimbursement with respect to payments of worker's compensation or in the nature of worker's compensation benefits.)
- Lighthouse Keepers Widow's Benefits (33 U.S.C. §775)
- Wages of Fisherman, Seaman and Apprentices (46 U.S.C. § 11109) (With exception for an order of a court about the payment by a master or seaman of any part of the master's or seaman's wages for the support and maintenance of the spouse or minor children of the master or seaman, or both).
- Longshoremen's and Harbor Worker's Compensation Act Death and Disability Payments (33 U.S.C. § 916)

PLEASE NOTE: IF YOU HAVE INCOME FROM ANY OF THE SOURCES LISTED ABOVE, PLEASE BRING VERIFICATION (FOR EXAMPLE, YOUR AWARD LETTER) TO COURT WITH YOU.



State of New Hampshire Criminal Records Unit

Department of Safety
DIVISION OF STATE POLICE

33 Hazen Drive, Concord, NH 03305

CRIMINAL HISTORY RECORD INFORMATION RELEASE AUTHORIZATION FORM

INSTRUCTIONS

NH RSA 106-B:14 and Administrative Rule Saf-C 5700 authorizes the dissemination of NH Criminal History Record Information (CHRI) for non-criminal justice purposes. In NH, all CHRI is confidential and released only upon the knowledge and permission of the individual of whom the request is made. Individuals requesting their own record in person need only to complete Section I. If the CHRI is to be released to a third party, both Section I and Section II must be completed. All requests by mail must have both sections completed and Section II notarized.

SECTION I (PLEASE PRINT CLEARLY)

Name: _____
LAST (MAIDEN/ALIAS) FIRST MI

Address: _____

STREET/CITY/STATE/ZIP CODE

Date of birth: 1968-12-31 Sex: _____

Hair color: _____ Eye color: _____

Driver license number: _____ State: _____

PURPOSE OF RECORD: Housing Employment
Annulment/Expungement

Other _____

My signature below certifies I am the individual listed above and the information provided is true

YOUR SIGNATURE: _____ DATE _____
Signed under penalty of perjury which may include a fine or imprisonment or both.

SIGNATURE OF PERSON/ENTITY TO RECEIVE RECORD DATE _____

SECTION II

I hereby authorize the release of my criminal record conviction(s), if any, to the following individual:

NAME OF PERSON/ENTITY TO RECEIVE RECORD

Address: _____

STREET/CITY/STATE/ZIP CODE

YOUR SIGNATURE

DATE

Notary not required pursuant to RSA 106-B:14, I(c) when electronically filed in Guardianship cases.

NOTARY'S SIGNATURE
(AFFIX Seal)

DATE
(comm. Exp.)

RECORD CHALLENGE

Saf-C 5703.12 Procedure for Correcting a CHRI (a) Persons or their attorneys desiring access to their CHRI for the purpose of challenge or correction shall appear at the central repository. (b) A copy shall be provided to a person if after review he/she indicates he/she needs the copy to pursue the challenge. (c) Any person making a challenge shall identify that portion of his/her CHRI which he/she believes to be inaccurate or incorrect, and shall also give a correct version of his/her record with an explanation of the reason that he/she believes his/her version to be correct. (d) The director shall take the following actions within 30 days of receipt of challenge: (1) Review the records and contact the law enforcement agency or court which submitted the record to compare the information to determine whether the challenge is valid; (2) If the challenge is valid, which means there is a discrepancy between the information submitted and the information maintained by the law enforcement agency or court, the record shall be corrected and the person and appropriate CJAs shall be notified; and (3) If the challenge is invalid, the person shall be informed and advised of the right to appeal pursuant to RSA 541. (e) When a record has been corrected, the division shall notify all non-criminal justice agencies, to whom the data has been disseminated in the last year, of the correction. (f) The person shall be entitled to review the information that records the facts, dates, and results of each formal stage of the criminal justice process through which he passes, to ensure that all such steps are completely and accurately recorded.

☐ To prevent a delay in processing, I have enclosed a self-addressed envelope. ☐ Prepaid Acc't Number _____
A \$25.00 fee is required for each request. Make checks payable to: State of NH - Criminal Records.

New Hampshire Department of Safety
DIVISION OF STATE POLICE